

23STCV06419 23STCV06419

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Case Number: 23STCV06419 Hearing Date: July 16, 2026 Dept: 1

Moving Party: Plaintiff Jose

Concepcion Rivera (Kick Law Firm, APC)

Responding Party: Defendant Overhill Farms (CDF Labor Law LLP)

Ruling: Motion GRANTED on the condition that Plaintiff add an allegation to the FAC that "Plaintiffs have agreed to limit the scope of any motion for class certification to one class, which will be based on Covid-19 pre-shift screenings for non-exempt workers at Overhill Farms during the period from April 13, 2020 to May 2022."

This is a wage and hour putative class action which is related to two other actions, including Golden v. Jobsource, Inc. (Case No. 20STCV14536, Golden). Plaintiff Jose Concepcion Rivera (Plaintiff) alleges that he and others were employed by defendants Overhill Farms, Inc., Jobsource Huntington Park, and other defendants, during which employment those defendants committed various violations of labor law. Plaintiff moves for leave to file a first amended complaint (FAC). Defendant Overhill Farms, Inc. (Defendant) opposes.

This action was filed on March 23, 2023. On December 19, 2025, the Court entered an order on Plaintiff and Defendant's stipulation to continue the class certification deadline which recited that the parties were bound for mediation and that if the matter did not settle, Plaintiff could file a class certification, but that Plaintiff agreed to limit the motion to "one class, which will be based on Covid-19 pre-shift screenings for non-exempt

workers at Overhill Farms during the period from April 13, 2020 to May 2022.” (Court’s December 19, 2025 order, pp. 2-3.)

In

February 2026, Plaintiff filed doe amendments naming numerous additional defendants, including Precise Staffing Solutions LLC and Precise Personnel LLC (collectively, Precise Personnel).

Plaintiff now seeks leave to amend his complaint to add Martin Ramirez as a named plaintiff, who was allegedly employed by Precise Personnel (while Jose Concepcion Rivera was not).

LEGAL STANDARDS

Although trial courts have broad discretion in allowing the amendment of any pleading before them (Huff v. Wilkins (2006) 138 Cal.App.4th 732, 746), “[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1423 (Howard).) Indeed, when “no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Thus, leave to amend may only properly be denied when: (1) the proposed amendment is futile; (2) the amending party has not exercised due diligence and has inexplicably delayed bringing the proposed amendment; or (3) the opposing party would otherwise be unfairly prejudiced by the amendment. (See Howard, supra, 184 Cal.App.4th at 1423; Huff v. Wilkins, supra, 138 Cal.App.4th at 746; Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 939 (1975).)

REQUEST

FOR JUDICIAL NOTICE

Defendant requests judicial notice of various records from this action, as well as a judgment in Zamora v. Overhill Farms, Inc., Case No. 19STCV10854. These are all court records subject to judicial notice under Evid. Code § 452(d), and the request is GRANTED in full.

DISCUSSION

Defendant contends that

Plaintiff's request for amendment is untimely, that the proposed complaint violates the terms of the stipulation, which the Court ordered, and that both Plaintiff and Mr. Ramirez lack standing to represent the class.

The Court rejects

Defendant's timeliness argument. As set

forth in the motion and reply, Plaintiff's counsel deposed Defendant's person

most knowledgeable (PMK) in December 2025, at which the witness was asked about

other staffing agencies that had supplied employees at Defendant's worksite and

the witness was improperly instructed not to answer. When he was deposed in December 2025, Mr.

Ramirez himself could not recall the agency other than JobSource for which he

had worked, and Plaintiff promptly filed two amendments naming Precise Personnel

in February 2026 upon discovering their identities. Plaintiff requested that Defendant stipulate

to the addition of Mr. Ramirez shortly thereafter, and it is only because

Defendant did not accept the stipulation that this motion became

necessary. Despite Defendant's

contention, there is no actual evidence that Plaintiff "has known since the

inception of this case that Overhill used temp agencies – other than JobSource[.]" While the motion is coming quite far into the

case, it is nonetheless timely.

Defendant next contends that

the class description in the FAC exceeds the scope of the class certification

motion Plaintiff agreed to bring. The

FAC provides:

35. Proposed Class: "All persons who are employed or have been employed by Defendants in the State of California as hourly, non-exempt workers during the period of the relevant statute of limitations."

36. Proposed Sub-classes:

A. All persons who are employed or have been employed by Defendants

in the State of California as hourly, non-exempt workers during the period of

the relevant statute of limitations, who worked one or more shifts in excess of

five (5) hours.

B. All persons who are employed or have been employed by Defendants

in the State of California as hourly, non-exempt workers during the period of

the relevant statute of limitations, who worked one or more shifts in excess of

six (6) hours.

C. All persons who are employed or have been employed by Defendants in the State of California as hourly, non-exempt workers during the period of the relevant statute of limitations, who worked one or more shifts in excess of eight (8) hours.

D. All persons who are employed or have been employed by Defendants in the State of California as hourly, non-exempt workers during the period of the relevant statute of limitations, who worked one or more shifts in excess of three and one-half hours (3 ½), but less than or equal to six (6) hours.

E. All persons who are employed or have been employed by Defendants in the State of California as hourly, non-exempt workers during the period of the relevant statute of limitations, who worked one or more shifts in excess of six (6) hours, but less than or equal to ten (10) hours.

F. All persons who are employed or have been employed by Defendants in the State of California as hourly, non-exempt workers during the period of the relevant statute of limitations, who separated their employment from Defendants.

G. All persons who are employed or have been employed by Defendants in the

State of California as hourly, non-exempt workers during the period of the

relevant statute of limitations, who received pay for one or more pay periods.

(FAC, ¶¶ 35-36.) As Defendant notes, the parties stipulated and the Court ordered that “Plaintiff agrees to limit the scope of his Motion to one class, which will be based on Covid-19 pre-shift screenings for non-exempt workers at Overhill Farms during the period from April 13, 2020 to May 2022.” (Court’s December 19, 2025 Order on Stipulation, pp. 2-3.) The Court agrees that an inconsistency between the class description and the stipulation could needlessly confuse the record, but that is not reason to deny the motion or set Plaintiff to the task of redrafting the complaint. Rather, Plaintiff should simply add an allegation that “Plaintiffs [i.e. Plaintiff and Mr. Ramirez] have agreed to

limit the scope of any motion for class certification to one class, which will be based on Covid-19 pre-shift screenings for non-exempt workers at Overhill Farms during the period from April 13, 2020 to May 2022." That should eliminate any cause for concern.

Defendant argues that

Plaintiff and Mr. Ramirez each lack standing to represent a class of Defendant's employees, because Plaintiff was only employed by JobSource and Mr. Ramirez was only employed by JobSource and Precise Personnel. This is a merits argument, essentially arguing that the allegations of the FAC that Defendant, Precise Personnel, and JobSource exercised control over the putative class's wages, hours, and working conditions are unmeritorious. (See FAC, ¶¶ 12-15.) A motion for leave to amend is not the venue for testing the merits of disputed allegations. (See *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [even where proposed amendment states novel legal theory, preferable practice is to permit amendment and test the sufficiency of the allegations by further proceedings].) Whether Defendant employed Plaintiff or Mr. Ramirez is an issue for another day.

Likewise, Defendant's single-sentence contention that the claims are barred by a class settlement in the Zamora case is not germane to this motion. If indeed the Zamora settlement forecloses some or all of this action, that is a matter for a motion for summary judgment or adjudication, not for the Court to wade into now.

CONCLUSION

For the foregoing reasons, the Court will GRANT the motion, on the condition that Plaintiff adds an allegation to the FAC that "Plaintiffs have agreed to limit the scope of any motion for class certification to one class, which will be based on Covid-19 pre-shift screenings for non-exempt workers at Overhill Farms during the period from April 13, 2020 to May 2022." Plaintiff to give notice.